

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Khairul Alam

Civil Revision No. 5353 of 1991

Bashir Ahmed

..... Petitioner.

-Versus-

Mokhlesur Rahman Chowdhury and
others.

..... Opposite parties.

No one appears

..... For the petitioner.

No one appears

..... For the opposite parties.

Heard on: 28.07.2025 and
Judgment on: 06.08.2025.

This Rule was issued calling upon the opposite party No. 1 to show cause as to why the judgment and order dated 28.06.1986 passed by the learned District Judge, Chattogram in Election Tribunal Appeal No. 13 of 1985 dismissing the appeal and thereby affirming the judgment and order dated 17.09.1985 passed by the learned Judge of the Election Tribunal, Chattogram in Election Tribunal Case No. 01 of 1984 dismissing the case should not be set aside and/or pass such other or further order or orders as to this court may seem fit and proper.

Relevant facts for disposal of the Rule are that the present petitioner was a candidate for the post of Chairman in

the election of No. 12 Chanua Union Parishad, Bashkhali, Chattogram, held on 03.01.1984. Challenging the result of the election, the petitioner filed the election case alleging several illegalities and irregularities. The present opposite party No.1 as defendant contested the case by filing a written objection denying the material allegations made in the election petition. During the trial, both parties adduced both oral and documentary evidence in support of their respective claim.

After the conclusion of the trial, the learned judge of the tribunal by the judgment and order dated 17.09.1985 dismissed the case. Against the said judgment and order, the petitioner preferred Election Tribunal Appeal No. 13 of 1985 before the District Judge, Chattogram. The learned District Judge, Chattogram by the judgment and order dated 28.06.1986 dismissed the said appeal and thereby affirmed the judgment and order passed by the trial Court.

Being aggrieved thereby the petitioner filed this civil revision and obtained the Rule.

No one appears to contest the Rule.

It appears that the present petitioner filed the case challenging the result of the election of No. 12 Chanua Union Parishad, Bashkhali, Chittagong, held on 03.01.1984. The election petition was rejected, and on appeal, the same was affirmed. Admittedly, the election was for a period of five years,

and the tenure of the said election expired long before, therefore, the cause of action of this case is no more in existence.

Therefore, I am of the view that the Rule has become infructuous.

Accordingly, the Rule is discharged as being infructuous.

Send down the lower court record along with a copy of this judgment at once.

Kashem, B.O